

S. NO. 65 H. NO. 10848 / 85 OG No. 28, 4326 (July 10, 1989) ; Globe 5/17/89 ; Inquirer 5/17/89

## [ REPUBLIC ACT NO. 6725, May 12, 1989 ]

### **AN ACT STRENGTHENING THE PROHIBITION ON DISCRIMINATION AGAINST WOMEN WITH RESPECT TO TERMS AND CONDITIONS OF EMPLOYMENT, AMENDING FOR THE PURPOSE ARTICLE ONE HUNDRED THIRTY-FIVE OF THE LABOR CODE, AS AMENDED**

*Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:*

SECTION 1. Article One hundred thirty-five of the Labor Code, as amended, is hereby further amended to read as follows:

"Art. 135. *Discrimination Prohibited.* — It shall be unlawful for any employer to discriminate against any woman employee with respect to terms and conditions of employment solely on account of her sex.

"The following are acts of discrimination:

"(a) Payment of a lesser compensation, including wage, salary or other form of remuneration and fringe benefits, to a female employee as against a male employee, for work of equal value; and

"(b) Favoring a male employee over a female employee with respect to promotion, training opportunities, study and scholarship grant solely on account of their sexes.

"Criminal, liability for the willful commission of any unlawful act as provided in this article or any violation of the rules and regulations issued pursuant to Section 2 hereof shall be penalized as provided in Articles 288 and 289 of this Code: *Provided*, That the institution of any criminal action under this provision shall not bar the aggrieved employee from filing an entirely separate and distinct action for money claims, which may include claims for damages and other affirmative reliefs. The actions, hereby authorized shall proceed independently of each other."

SEC. 2. The Secretary of Labor and Employment, is hereby authorized to promulgate the necessary guidelines to implement this Article in accordance with the generally accepted practices and standards here and abroad.

SEC. 3. This Act shall take effect fifteen (15) days from the date of its publication in at

least two (2) national newspapers of general circulation.

Approved,

**(Sgd.) RAMON V. MITRA**

*Speaker of the House of Representatives*

**(Sgd.) JOVITO R. SALONGA**

*President of the Senate*

This Act which is a consolidation of Senate Bill No. 65 and House Bill No, 10848 was finally passed by the Senate and the House of Representatives on April 27, 1989 and April 26, 1989, respectively.

**(Sgd.) QUIRINO D. ABAD SANTOS,  
JR.**

*Secretary General  
House of Representatives*

**(Sgd.) EDWIN P. ACOBA**

*Secretary of the Senate*

Approved: March 12, 1989

**(SGD.) CORAZON C. AQUINO**

*President of the Philippines*



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